Amendment of section 251.

106. In section 251 of the Income-tax Act,—

(*i*) for the marginal heading, the following marginal heading "Powers of the Joint Commissioner (Appeals) or the Commissioner (Appeals)" shall be substituted;

(*ii*) after sub-section (1), the following sub-section shall be inserted, namely:—

"(1A) In disposing of an appeal, the Joint Commissioner (Appeals) shall have the following powers—

(*a*) in an appeal against an order of assessment, he may confirm, reduce, enhance or annul the assessment;

(*b*) in an appeal against an order imposing a penalty, he may confirm or cancel such order or vary it so as either to enhance or to reduce the penalty;

(*c*) in any other case, he may pass such orders in the appeal as he thinks fit.";

(*iii*) in sub-section (2), for the words and brackets "Commissioner (Appeals)", the words and brackets "Joint Commissioner (Appeals) or the Commissioner (Appeals), as the case may be," shall be substituted;

(*iv*) in the *Explanation*,—

(*a*) for the words and brackets "an appeal, the Commissioner (Appeals),", the words and brackets "an appeal, the Joint Commissioner (Appeals) or the Commissioner (Appeals)," shall be substituted;

(*b*) for the words and brackets "raised before the Commissioner (Appeals)", the words and brackets "raised before the Joint Commissioner (Appeals) or the Commissioner (Appeals), as the case may be," shall be substituted.

सत्यमेव जयते
कोष मूलो दण्ड:
INCOME TAX DEPARTMENT